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# United States Court of Appeals for the Fourth Circuit

## Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

### Merits Denial of Impracticability-Path Stay

Entered February 6, 2026

The City of Norvale moves for a stay of the January 23 preliminary injunction pending appeal. The Piedmont Booksellers Guild opposes. The City's Rule 8 showing permits initial presentation in this Court, but the motion is denied after consideration of the stay factors.

The assigned district judge recused on January 30, and the clerk confirmed that reassignment would not place the matter before another judicial officer before February 5. The City attempted referral, requested emergency reassignment, documented three clerk communications, and identified a February 3 staffing decision that preceded the represented date for district action. Declarations support those facts, and the Guild does not dispute the clerk's statements. That concrete interval and decision point made district-first presentation impracticable when the motion was filed.

This gateway conclusion carries no weight on the merits. Under *Nken v. Holder*, 556 U.S. 418, 433–35 (2009), the applicant must establish a strong likelihood of success, irreparable injury absent a stay, the effect on other parties, and the public interest. Likelihood and irreparable harm are the most critical considerations.

The City presents a substantial appellate question concerning Rule 65(d) specificity and the absent Rule 65(c) security determination. It has not, however, made the strong showing required to suspend the core preliminary protection while those issues are reviewed.

## Application of the Stay Factors

The ordinance is content neutral, and Norvale's interests in access, traffic, loading, sanitation, and staffing are important. The preliminary record nevertheless supports the district court's concern about fit. Compensation triggers a forty-five-day identity and topic commitment and another charge for each presenter, while time, format, equipment, location, audience estimate, and site configuration describe the operational effects more directly. The preserved authority allows the City to collect those facts and respond to a material change.

The short pilot history establishes neutral administration but does not test a late author substitution or isolate work supporting each \$45 increment. The City's promise of three-business-day review reduces possible harm, yet it is not part of the enacted standard. On this record, the City has not shown a strong likelihood that the Guild's preliminary entitlement will be reversed.

Norvale also has not established irreparable injury caused by the injunction. It reserved the two supplemental employees before the February 3 deadline without a nonrefundable commitment. It remains free to coordinate transit, compare reservations, protect the service route, regulate loading, arrange sanitation, and impose documented site conditions. Foregone charges are monetary, and the administrative work of separating permissible logistical questions from restrained paid-speaker requirements does not alone justify a stay.

By contrast, restoration would affect current invitations, advertising, honoraria, and seller decisions. A lost February appearance cannot be recreated after appeal. The Guild's injury is tied to protected planning choices and weighs heavily against suspension.

## Disposition

The equities and public interest favor continuity. Cedar Commons can remain both expressive and safe under the existing division: the Guild may conduct free author programs without the disputed payment-linked requirements, and the City may enforce neutral rules addressing actual physical and operational conditions. The event history is peaceful, and the parties have demonstrated an ability to resolve ordinary route, loading, and medical-access issues through direct coordination.

The motion for a stay, including the request for a partial stay, is denied. The Court does not finally decide the First Amendment claims, determine an appropriate security amount, or approve the present injunction's wording for permanent use. The specificity and security arguments remain available in the merits appeal. Denial reflects only the City's failure to carry the demanding burden for temporary suspension.

The January 23 preliminary injunction remains effective according to its terms. Norvale shall continue receiving direct logistical information and may act on documented reservations, capacity, traffic, emergency access, sanitation, layout, competing-use, and material-change concerns. The Guild shall provide promised updates and comply with lawful site directions. Neither party shall characterize this order as a final ruling on Ordinance N-2025-18.

The Clerk shall transmit the order to counsel and the district clerk. The appeal will proceed after record completion under a schedule to be entered separately. Entered at the direction of the panel on February 6, 2026.